

CODE

Conduct and conflict of interest

Draft for member review | 29 September 2026

Plain language summary

A public conflict register within days, recusal before debate, and removal after a second missed recusal. Disclosure that stays in a drawer does not change a vote. The register is public.

Working draft. Not adopted law. Not a legal opinion. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument is the conflict of interest rule and the code of conduct for the chief, every councillor, and every employee who can spend money, hire, or allocate housing or a program.

Part 2. Disclosure and the register

2.1 Within 5 days of taking office or starting employment, the person must file a written disclosure with the records officer. The disclosure must list business interests, employers, and any contract the person or their immediate family has with the First Nation.

2.2 A new interest must be filed within 5 days of the person learning of it.

2.3 The records officer must post the disclosure on the public register within 2 days of filing and keep it for 10 years. A filing that is 10 days late or less is posted as late, and the appeal body issues a written warning within 14 days. A filing later than 10 days stops that person's honorarium or pay until the filing is posted.

Part 3. Recusal and benefits

3.1 The person must leave the room before debate on a matter in which the person or their immediate family has a financial interest. The person must not move, second, or vote. Constitution section 4.6 applies to pay, honoraria, travel, and contracts.

3.2 A missed recusal suspends the person's honorarium or authority to spend for 30 days. The appeal body must issue that suspension in writing within 14 days of confirming the miss. A second missed recusal in the same term: the appeal body must remove the person from office or employment. Removal takes effect 7 days after the written decision unless a court stays it within those 7 days.

3.3 A gift, or gifts from one source in one year, worth more than \$100 must be reported within 10 days. A gift from a person who is seeking a contract, a job, or a house must be refused. If it is accepted, it must be turned over to the First Nation within 5 days, and the person must not take part in that decision. Failure to turn it over is a missed recusal under section 3.2.

Part 4. Conduct

4.1 The person must not use information obtained in office for a private contract. If the person does, the appeal body must order repayment of the private gain within 30 days and remove the person from the decision. A second finding removes the person from office or employment on the same 7 day rule as section 3.2.

4.2 The person must not tell staff to break this set. A direction to break it is void. Staff must refuse it in writing within 2 days and send the refusal to the appeal body. Staff who comply with a void direction are subject to section 4.1. Staff who refuse must not be disciplined for the refusal. Discipline within 180 days is presumed reprisal under the whistleblower instrument unless written reasons are filed with the appeal body within 10 days of the discipline.

4.3 This instrument does not try a crime. Theft, fraud, and threats are matters for the police. An internal finding is about office, pay, and repayment only.

Part 5. Amendment

5.1 Council must not amend this conduct instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, the off-reserve councillor position, the rule that one person must not commit more than \$10,000, the open invitation for a contract over \$25,000, the public mandate and the quarterly report, the removal petition, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this conduct instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this conduct instrument.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this conduct instrument comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this conduct instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.